

# HOUSE . . . . . No. 1617

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Tackey Chan*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to long-term protection of victims of violence.

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PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:                                                                     | DATE ADDED:      |
|--------------------------|---------------------------------------------------------------------------------------|------------------|
| <i>Tackey Chan</i>       | <i>2nd Norfolk</i>                                                                    | <i>1/17/2025</i> |
| <i>Michael Morrissey</i> | <i>Office of the Norfolk District Attorney,<br/>45 Shawmut Road, Canton, MA 02021</i> | <i>1/17/2025</i> |

# HOUSE . . . . . No. 1617

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By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 1617) of Tackey Chan and Michael Morrissey relative to long-term protection of victims of violence. The Judiciary.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to long-term protection of victims of violence.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 3 of chapter 209A of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by adding the following subsection:-

3           (j) After a conviction or a change of plea and at sentencing in the Superior Court on  
4   charges of:

5           (1) a felony which has as an element of the use, attempted use, or threatened use of  
6   physical force against the person of another; or

7           (2) a misdemeanor or felony involving “abuse” as defined in section 1 or while a 209A  
8   order was in effect against the defendant; or

9           (3) any of the following specific charges: (i) assault and battery on a family or household  
10   member; (ii) assault and battery on a person 60 or older or a disabled person; (iii) assault with  
11   intent to murder; (iv) attempt to murder; (v) strangulation or suffocation; (vi) assault and battery

causing serious bodily injury; (vii) assault and battery by means of a dangerous weapon; (viii) assault and battery by means of a dangerous weapon causing serious bodily injury; (ix) mayhem; (x) assault and battery; (xi) stalking; (xii) rape; (xiii) assault with intent to rape; (xiv) kidnapping; or (xv) intimidation of a witness.

A judge in the Superior Court at the time of sentencing for crimes enumerated and committed on a person who is family or a household member as defined in section 1, or a person who is or was in a substantial dating relationship, and has an active order under this section, may issue a permanent abuse prevention order at the request of a person who is or was in a substantial dating relationship with the defendant or is a family or household member as defined in section 1 even if the original order was issued from the Boston Municipal Court, a District Court, or a Probate Court and even if the family or household member is a minor. The order, as permitted under section 2, may be issued without a further hearing date based on the facts of the case which the Superior Court is sentencing the defendant at the request of the victim of violence so long as the victim of violence already had an active protective order.